



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

OCT 7 2003

DOT-E 13310

EXPIRATION DATE: March 31, 2004

1. GRANTEE: Amvac Chemical Corporation
Los Angeles, CA
2. PURPOSE AND LIMITATION:
 - a. This emergency exemption authorizes the use of approximately 6,000 UN 5M2 multi-wall water-resistant paper bags that do not conform to the marking provisions of Part 178 for the transportation in commerce of hazardous materials. This exemption provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.203(a) in that marking the exemption number on the shipping paper is waived; § 172.301(c) in that marking the exemption number on the paper bag is waived; §§ 178.3(c) and 178.503(a)(1) in that each bag represented as manufactured to meet a UN standard does not bear the UN symbol.
5. BASIS: This exemption is based on the application of Amvac Chemical Corporation, dated September 24, 2003, submitted in accordance with § 107.117 and a determination that it is necessary to prevent significant economic loss.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

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Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Organophosphorus pesticide, solid, toxic	6.1	UN2783	III

7. SAFETY CONTROL MEASURES:

a. PACKAGING: Packagings authorized are UN 5M2 multi-wall water-resistant paper bags meeting the packing group performance level marked on each bag.

b. MARKING: Each bag must be marked in accordance with § 178.503(a) except that the provisions for marking the UN symbol in § 178.503(a)(1) are waived.

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package offered or reoffered for transportation. It must be made available to a DOT representative upon request.

d. The marking requirements of §§ 172.203(a) and 172.301(c) are waived.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only and passenger-carrying aircraft.

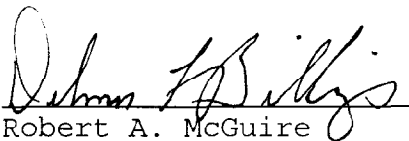
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10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel, aircraft or motor vehicle used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when this exemption has expired or is otherwise no longer in effect.

Issued in Washington, D.C.:

for 

Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

OCT 7 2003

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, 400 Seventh Street, SW, Washington, D.C. 20590. Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: DL



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Research and
Special Programs
Administration**

APPROVAL CA2003100008
ISSUED BY THE COMPETENT AUTHORITY OF THE UNITED STATES
Expiration Date: March 31, 2004

1. **APPROVAL HOLDER:** Amvac Chemical Corporation
4100 E. Washington Blvd.
Los Angeles, CA 90023
2. **REGULATORY AUTHORITY:** Part 1, Chapter 1; paragraph 1.1.2
of the International Civil Aviation Organization's
Technical Instructions for the Safe Transport of Dangerous
Goods by Air (ICAO TI) and Section 7.9 of the International
Maritime Dangerous Goods (IMDG) Code.
3. **SYNOPSIS:** This approval authorizes the shipment of
Organophosphorus pesticide, solid, toxic, 6.1, UN2783, PG
III in approximately 6,000 UN 5M2 multi-wall water-
resistant paper bags that are properly marked except they
do not bear the UN symbol.
4. **BASIS:** This approval is issued in response to the request
dated September 24, 2003, submitted by Mr. Steven Hunt on
behalf of Amvac Chemical Corporation.
5. **PERIOD OF VALIDITY AND CONDITIONS OF APPROVAL:** This
approval does not provide relief from any requirements of
the Hazardous Materials Regulations, the ICAO TI or the
IMDG Code except as stated herein. This approval is valid
until the posted expiration date or unless terminated by
the Associate Administrator for Hazardous Materials Safety.

a. Approved Material(s):

Proper shipping name, Hazard class or division, and
Identification number: Organophosphorus pesticide, solid,
toxic, 6.1, UN2783, PG III.

b. Packaging: Packagings authorized are UN 5M2 multi-
wall water-resistant paper bags.

6. SPECIAL PROVISIONS:

a. A copy of this approval and DOT-E 13310 must accompany
each shipment made under the terms of this approval.

b. This approval in no way affects the need to obtain any
required authorizations from other agencies of the United
States Government or from the competent authorities of the
countries of transit and destination.

c. All requirements of DOT-E 13310 must be met.

7. GENERAL PROVISIONS:

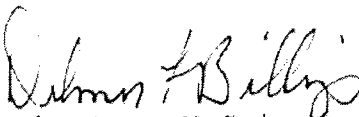
a. Failure by any person to comply with the terms and
conditions of this approval and the Hazardous Materials
Regulations, 49 CFR Parts 171-180, the IMDG Code or the
ICAO TI may result in the modification, suspension or
termination of that person's authority to use this
approval. Failure to comply may also subject that person
to penalties prescribed by 49 U.S.C. §§ 5123 and 5124.
This approval may be modified, suspended or terminated in
its entirety if that action is justified in light of
changes in circumstances or additional information not
available when this approval was issued. Unless immediate
modification, suspension or termination is necessary to
avoid a risk of significant harm to persons or property,
before action is taken, that person will be notified and
provided with an opportunity to show why the proposed
action should not be taken.

b. Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this approval must be provided training on the requirements and conditions of this approval in addition to the training required by §§ 172.700 through 172.704.

Issued in Washington, D.C.

Dated: October 7, 2003

Approved by:


jn Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: DHM-32.